Temporary
2823

Executive Order.

1. By virtue of authority contained in Section 4 of the act approved May 18, 1917, entitled, "An Act to authorize the President to increase temporarily the military establishment of the United States," whereby it is provided—

> "And nothing in this Act contained shall be construed to require or compel any person to serve in any of the forces herein provided for who is found to be a member of any well recognized religious sect or organization at present organized and existing and whose existing creed or principles forbid its members to participate in war in any form and whose religious convictions are against war or participation therein in accordance with the creed or principles of said religious organizations; but no person so exempted shall be exempted from service in any capacity that The President shall declare to be noncombatant."

I hereby declare that the following military service is noncombatant service:

a. Service in the Medical Corps wherever performed. This includes service in the sanitary detachments attached to combatant units at the front; service in the divisional sanitary trains composed of ambulance companies and field hospital companies, on the line of communications, at the base in France, and with the troops and at hospitals in the United States; also the service of supply and repair in the Medical Department.

b. Any service in the Quartermaster Corps, in the United States may be treated as noncombatant. Also, in rear of zone of operations, service in the following: Stevedore companies, labor companies, remount depots, veterinary hospitals, supply depots, bakery companies, the subsistence service, the bathing service, the laundry service, the salvage service, the clothing renovation service, the shoe repair service, the transportation repair service, and motor-truck companies.

c. Any engineer service in the United States may be treated as noncombatant service. Also, in rear of zone of operations, service as follows: Railroad building, operation and repair; road building and repair; construction of rear line fortifications, auxiliary defenses, etc.; construction of docks, wharves, storehouses and of such cantonments as may be built by the Corps of Engineers; topographical work; camouflage; map reproduction; supply depot service; repair service; hydraulic service; and forestry service.

2. Persons ordered to report for military service under the above Act who have (*a*) been certified by their Local Boards to be members of a religious sect or organization as defined in Section 4 of said Act; or (*b*) who object to participating in war because of conscientious scruples but have failed to receive certificates as members of a religious sect or organization from their Local Board, will be assigned to noncombatant military service as defined in paragraph 1 to the extent that such persons are able to accept service as aforesaid without violation of the religious or other conscientious scruples by them in good faith entertained. Upon the promulgation of this order it shall be the duty of each Division, Camp, or Post Commander, through a tactful and considerate officer, to present to all such persons the provisions hereof with adequate explanation of the character of noncombatant service herein defined, and upon such explanations to secure acceptances of assignment to the several kinds of noncombatant service above enumerated; and whenever any person is assigned to noncombatant service by reason of his religious or other conscientious scruples, he shall be given a certificate stating the assignment and reason therefor, and such certificate shall thereafter be respected as preventing the transfer of such persons from such noncombatant to combatant service by any Division, Camp, Post, or other Commander under whom said person may thereafter be called to serve, but such certificate shall not prevent the assignment of such person to some other form of noncombatant service with his own consent. So far as may be found feasible by each Division, Camp, or Post Commander, future assignments of such persons to noncombatant military service will be restricted to the several detachments and units of the Medical Department in the absence of a request for assignment to some other branch of noncombatant service as defined in paragraph 1 hereof.

Conscientious objectors
Definitions
Selective Service Act of May 18, 1917
Commanding Officers - Army

3. On the first day of April, and thereafter monthly, each Division, Camp, or Post Commander shall report to The Adjutant General of the Army, for the information of the Chief of Staff and the Secretary of War, the names of all persons under their respective commands who profess religious or other conscientious scruples as above described and who have been unwilling to accept, by reason of such scruples, assignment to noncombatant military service as above defined, and as to each such person so reported a brief, comprehensive statement as to the nature of the objection to the acceptance of such noncombatant military service entertained. The Secretary of War will from time to time classify the persons so reported and give further directions as to the disposition of them. Pending such directions from the Secretary of War, all such persons not accepting assignment to noncombatant service shall be segregated as far as practicable and placed under the command of a specially qualified officer of tact and judgment, who will be instructed to impose no punitive hardship of any kind upon them, but not to allow their objections to be made the basis of any favor or consideration beyond exemption from actual military service which is not extended to any other soldier in the service of the United States.

4. With a view to maintaining discipline, it is pointed out that the discretion of courts-martial, so far as any shall be ordered to deal with the cases of persons who fail or refuse to comply with lawful orders by reason of alleged religious or other conscientious scruples, should be exercised, if feasible, so as to secure uniformity of penalties in the imposition of sentences under Articles of War 64 and 65, for the wilful disobedience of a lawful order or command. It will be recognized that sentences imposed by such courts-martial, when not otherwise described by law, shall prescribe confinement in the United States Disciplinary Barracks or elsewhere as the Secretary of War or the reviewing authority may direct, but not in a penitentiary; but this shall not apply to the cases of men who desert either before reporting for duty to the military authorities or subsequently thereto.

5. The Secretary of War will review the sentences and findings of courts-martial heretofore held of persons who come within any of the classes herein described, and bring to the attention of the President for remedy, if any be needed, sentences and judgments found at variance with the provisions hereof.

WOODROW WILSON

THE WHITE HOUSE,
20 March, 1918.

[No. 2823.]